

25STCV06025 25STCV06025

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-06-24

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C413%2C06%2F24%2F2026

Source SHA-256: a5f813e945d1941549823ab67c95fd353fd6cc76d99867af9721e89fa0838a87

Case Number: 25STCV06025 Hearing Date: June 24, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: June 24, 2026

CASE NUMBER: 25STCV06025

CASE NAME: Raymundo Perez Hernandez v. General Motors, LLC

MOVING PARTY: Plaintiff, Raymundo Perez
Hernandez

OPPOSING PARTY: Defendant, General Motors, LLC

PROCEEDING: MOTION TO COMPEL FURTHER RESPONSES AND DOCUMENTS TO PLAINTIFF'S
AMENDED REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

RULING

SUMMARY: Plaintiff's Motion to

Compel Further Responses to Requests for Production, Set One is GRANTED. Defendant is ordered to serve verified further responses that comply with the mandatory language for responses in section 2031.310, 2031.320, and 2031.330 of the Code of Civil Procedure and produce all responsive documents within 30 days of the date of this order.

Background

This is

a lemon law action arising from Raymundo Perez Hernandez's ("Plaintiff") purchase of a 2023 Chevrolet Silverado 1500 ("Subject Vehicle") from Chevrolet

of Montebello on October 6, 2023.

On

March 4, 2025, Plaintiff filed a complaint against General Motors, LLC

("Defendant") alleging causes of action for: (1) violation of

Civil Code Section 1793.2(d); (2) violation of 1793.2(b); (3)

violation of 1793.2(a)(3); (4) breach of express warranty; and (5) breach of the implied warranty of merchantability.

On May

19, 2026, Plaintiff filed a motion to compel further responses to requests for production of documents, set one ("RPDs"). On June 12, 2026, Defendant filed an opposition.

I. Legal Standard

On

receipt of responses to requests for production, the propounding party may move for an order compelling a further response if the propounding party deems that a statement of compliance is incomplete, a representation of inability to comply is inadequate, incomplete, or evasive, or an objection in the response is without merit. (See Code Civ. Proc., §§ 2030.310, subd. (a)(1)-(3).)

The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid. (Cal. Rules of Court, rule 3.1345(c).) The responding party has the burden to justify objections in response to a motion filed to compel further responses. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.)

II.

Meet and Confer

A motion

to compel further responses "shall be accompanied by a meet and confer declaration." (Code Civ. Proc., § 2031.310, subd. (b)(2).) The declaration must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented in the motion. (Code Civ. Proc., § 2016.040.) "[A] reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing] counsel.... Rather, the

law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

On

December 1, 2025, the parties engaged in a telephonic meet and confer regarding the allegedly inadequate responses. (Jiang Decl., ¶ 23.) The parties engaged in a second telephonic meet and confer regarding the alleged inadequate amended responses. (Jiang Decl., ¶ 28.)

Therefore,
the parties have satisfied the meet and confer requirement.

III.

Discussion

Plaintiff

moves for an order compelling a further response to RPDs Nos. 16 and 19-21.

No. 16:

All DOCUMENTS, including but not limited to electronically stored information and electronic mails, concerning or relating to any internal analysis or investigation by YOU or on YOUR behalf regarding the AUDIO SYSTEM DEFECT in vehicles of the same year, make, and model as the SUBJECT VEHICLE. [This request shall be interpreted to include, but not be limited to, any such investigation to determine the root cause of such AUDIO SYSTEM DEFECT, any such investigation to design a permanent repair procedure for such AUDIO SYSTEM DEFECT, any such investigation into the failure rates of parts associated with such AUDIO SYSTEM DEFECT, any cost analysis for implementing a proposed repair procedures, any savings analysis not implementing a proposed repair procedures, etc.]

No. 19:

All DOCUMENTS, including but not limited to electronically stored information and electronic mails, concerning customer complaints, claims, reported failures, and warranty claims related to AUDIO SYSTEM DEFECT, in vehicles of the same year, make, and model as the SUBJECT VEHICLE, including but not limited to any databases in YOUR possession with information from dealers, service departments, parts departments, or warranty departments, and all documents concerning YOUR response to each complaint, claim or reported

failure.

No. 20:

All DOCUMENTS, including but not limited to electronically stored information and electronic mails, concerning failure rates of vehicles of the same year, make, and model as the SUBJECT VEHICLE as a result of AUDIO SYSTEM DEFECT.

No. 21:

All DOCUMENTS, including but not limited to electronically stored information and electronic mails, concerning or relating to any fixes for AUDIO SYSTEM DEFECT in vehicles of the same year, make, and model as the SUBJECT VEHICLE.

Defendant

objects to all requests on the grounds that the relevant information to this request was provided previously. Defendant further objects based on attorney-client privilege, work product, and the request is overbroad. Defendant later amended their response to provide the BATES-stamped documents that were responsive to this request.

Plaintiff

argues Defendant's amended responses are not Code compliant, and the documents listed in the BATES-stamped lists are not responsive to the requests. More specifically, Plaintiff argues the amended responses do not contain a requested root cause investigation document, failure rate document, internal investigation, or analysis document, or any documents relating to the creation and issuance of important service campaigns, Recalls or TSBs. (Mot., p. 7:4-7; Jiang Decl., ¶ 31.)

The

Court agrees with Plaintiff that Defendant's objections are largely without merit and fail to conform to the requirements of the Discovery Act. Namely, Defendant does not state whether its responses comply in whole or in part or the reason it is unable to comply in whole. The RPDs are not overly broad, unduly burdensome, vague, and ambiguous. Given that the RFP seeks, among other things, Defendant's internal analysis or investigations regarding similar vehicles. The requests are reasonably calculated to lead to the discovery of admissible evidence.

Therefore,

the Motion to Compel Further Responses to Requests for Production, Set One is

GRANTED.

Conclusion

Plaintiff's

Motion to Compel Further Responses to Requests for Production, Set One is GRANTED. Defendant is ordered to serve verified further responses that comply with the mandatory language for responses in section 2031.310, 2031.320, and 2031.330 of the Code of Civil Procedure and produce all responsive documents within 30 days of the date of this order.

Date: June 24, 2026 _____

William

E. Weinberger

Judge,

Los Angeles Superior Court